

Exhibit A – Construction Contract

Date: 21st March 2025

Introduction:

This exhibit is submitted by the Respondent to provide the full renovation contract dated 31 October 2024, which governs the scope of works, payment terms, project timeline, and dispute resolution mechanism. The contract forms the foundation of the Respondent's defense, demonstrating agreed obligations, timelines, and arbitration clause under eBRAM APEC Rules.

A1. Parties & Execution

A1-1. Copy of the fully executed contract between:

- Claimant: Mr. Chan Tai Man
- Respondent: Zhi Yu Engineering Company
- Contract date: 31 October 2024
- Project: Renovation of Block 88B, Yee King Court, Tai Po Plaza, Hong Kong SAR

A1-2. Signature pages and company chops (if any).

A2. Key Contract Clauses (Certified Extracts)

A2-1. Scope of works and materials specifications.

A2-2. Programme / time for completion (1 Nov 2024 – 15 Jan 2025; 75 days).

A2-6. Arbitration clause: eBRAM APEC Rules; seat Hong Kong SAR; language English.

The contract is attached.

Zhi Yu Engineering Company Renovation Contract

FOR INTERIOR DESIGN AND
RENOVATION MATERIALS

AT Block 88B, Yee King Court, Tai Po Plaza

Date: 31st October 2024

Contractor Information

- Company Name: Zhi Yu Engineering Company
- Address: 2/F, A22 Wing Sing Industrial Building, 88 Kwai Cheong Road, Kwai Chung
- Contact Person: Alex Chan
- Phone: +852 1234 5678
- Email: alex.chan@zhiyuengineering.hk

Project Address: Block 88B, Yee King Court, Tai Po Plaza

Usable Area: 4,700 sq. ft.

Scope of Work and Details

1. Preliminary Works

- a) Third-Party Insurance (coverage up to HK\$10 million): 1 item
- b) Unit Entrance Protection: 1 item
- c) Water Pipe Scaffold Setup: 1 item

Sub-total Cost (HKD): HK\$10,000

2. Demolition Works

- a) Removal of Main Door: 1 item
- b) Removal of Room Doors (2 doors): 1 item
- c) Removal of Kitchen and Bathroom Doors: 1 item each
- d) Demolition of Kitchen Wall and Floor Tiles: 1 item
- e) Demolition of Bathroom Wall and Floor Tiles: 1 item
- f) Removal of Living Room and Bedroom Floor Tiles: 1 item
- g) Removal of Kitchen Cabinets and Miscellaneous Items: 1 item

Sub-total Cost (HKD): HK\$528,000

3. Masonry Works

- a) New Kitchen Wall Plastering: 1 item
- b) New Kitchen Wall and Floor Tiling: 1 item
- c) New Bathroom Wall Plastering: 1 item
- d) New Bathroom Wall and Floor Tiling: 1 item
- e) New Bathroom Shower Base Foundation: 1 item
- f) Living Room and Bedroom Floor Raising and Wood-Pattern Tile Installation: 1 item
- g) Door Stops and Surfaces in Quartz Stone: Includes main door, kitchen, bathroom, and shower surfaces: 1 item

Sub-total Cost (HKD): HK\$895,000

4. Waterproofing Works

- a) Kitchen Waterproofing: Apply waterproofing up to 1200mm for sink area, 300mm for remaining areas
- b) Bathroom Waterproofing: 1800mm high in shower area, 1500mm in other areas

Sub-total Cost (HKD): HK\$315,000

5. Doors

- a) Main Door Installation: 1 set
- b) Bedroom Door Installation: 2 sets
- c) Kitchen and Bathroom Doors: 1 set each
- d) Shower Screen: 1 set

Sub-total Cost (HKD): HK\$228,000

6. Plumbing

- a) Kitchen Water Supply: Includes cold and hot water connections for sink, washing machine, and dishwasher
- b) Bathroom Water Supply: Cold and hot water for heater, shower, and sink

Total Cost (HKD): HK\$226,000

Project Timeline

- Start Date: November 1, 2024
- Completion Date: January 15, 2025
- Total Duration: 75 days

Payment Schedule

1. Initial Deposit: 30% upon contract signing (HK\$660,600)
2. Midway Payment: 40% upon completion of half of the works (HK\$880,800)
3. Final Payment: 30% upon project completion and final inspection (HK\$660,600)

Total Contract Amount: HK\$2,202,000

Dispute Resolution

Any dispute, controversy or claim arising out of or relating to this contract, shall be settled in accordance with the APEC Rules of eBRAM in force when the Notice of Claim is submitted to eBRAM (the “eBRAM APEC Rules”).

Signatures

Client Name: Chan Tai Man



Signature: _____
Date: 31st October 2024

Contractor Representative: Alex Chan



Signature: _____
Date: 31st October 2024

Exhibit B – Programme & Delay Notifications

Date: 21st March 2025

Zhi Yu Engineering Company submits this project timeline and schedule update to demonstrate that delays in project completion were due to necessary accommodations for client-initiated modifications and external factors beyond our control, rather than due to any negligence or lack of diligence. This evidence is essential for our request to dismiss delay-related claims, as it provides a clear and transparent view of adjustments required during the project's progression, directly supporting the Respondent's position.

This timeline contains comprehensive details of each project milestone as initially outlined in the contract and shows actual progress dates. It includes client-requested adjustments in the project schedule, along with notes on specific delays resulting from supply chain disruptions and adverse weather conditions. For instance, we documented each key date where Mr. Chan requested design changes or where material delays affected the schedule. Each entry is annotated to highlight the adjustments made, demonstrating that Mr. Chan's requests directly impacted the project's original timeline. Additionally, this timeline provides specific instances where the Respondent communicated changes and obtained approvals, underscoring transparency and cooperation with the client throughout the project.

B1. Baseline Programme

Start Date: 1 November 2024

Completion Date: 15 January 2025

Total Duration: 75 days

B2. Schedule Updates

Weekly progress reports and updated timelines reflecting client-requested changes.

B3. Delay Notifications

Formal notices issued for delays caused by design changes, supply chain disruptions, and adverse weather conditions.

B4. Weather-Related Stoppages

Hong Kong Observatory warnings and site diary entries documenting stoppages due to typhoon and heavy rain.

Attached is a copy of the detailed project timeline, with annotations and dates reflecting the adjustments made due to client requests and external factors.

PROJECT

START DATE

Tuesday, September 2

5.- Enter initial Start Date to calculate Remaining dates.

Use BLANK version on next tab to offer and add tasks.

[illegible]

Exhibit C – Change Orders & Correspondence

Date: 21st March 2025

This collection of correspondence between Mr. Chan and Zhi Yu Engineering Company illustrates how modifications requested by the client led to adjustments in both timeline and project costs. The Respondent presents this evidence to show that additional costs and delays were directly tied to these client-initiated changes, reinforcing the defense that the Respondent was responsive to the client's needs but required additional time and resources to accommodate the requests.

This document includes a series of email exchanges, meeting notes, and records of in-person discussions in which Mr. Chan requested modifications to the original design. These modifications included layout adjustments, design alterations, and additional features not included in the initial project scope. Each item is detailed with time-stamped notes specifying the client's request, the Respondent's responses, and the ensuing agreement regarding schedule adjustments or additional costs incurred. This collection also shows that Mr. Chan acknowledged these changes and their impact on both budget and timeline, supporting the Respondent's position that any deviations from the original contract were mutually agreed upon and were necessary to accommodate the client's preferences.

C1. Cost & Time Impact Summary

Items	Price
Additional Labor for Waterproofing (Due to weather delay)	HKD 333,500
Material Substitution for Waterproofing	HKD 202,000
Additional Cost for Specialized Paint (Unapproved material substitution)	HKD 201,500
Extra Labor for Rework (Due to Material Delay)	HKD 400,000

C2. Correspondence Records

- Email exchanges confirming client requests and approvals
- Meeting notes documenting verbal agreements
- WhatsApp messages showing acknowledgment of cost/time impacts

Attachment

< Inbox



Chan Tai Man

17th January 2025

To: James Chen >

Re: Request for Layout Changes in Living and Kitchen Areas

Thank you, James. I understand the additional time and costs. Please proceed with the layout changes as discussed.

Best regards,

Chan Tai Man



< Inbox



Chan Tai Man
To: James Chen >

15th January 2025

Request for Layout Changes in Living and Kitchen Areas

Dear James,

I would like to make a few changes to the layout, specifically in the living and kitchen areas. Would it be possible to expand the living area and adjust the kitchen partition slightly? Please let me know the time and cost implications of these changes.

Best regards,
Chan Tai Man



< Inbox



Chan Tai Man

17th January 2025

To: James Chen >

Re: Request for Layout Changes in Living and Kitchen Areas

Thank you, James. I understand the additional time and costs. Please proceed with the layout changes as discussed.

Best regards,
Chan Tai Man



Exhibit E – Supplier Delay Notices

Date: 21st March 2025

This exhibit contains supplier communications evidencing delays in material delivery, which impacted the project schedule. These notices demonstrate that disruptions were caused by external supply chain issues beyond the Respondent's control, supporting the defense against delay-related claims. Included are emails, letters, and revised delivery schedules from suppliers of tiles, waterproofing materials, and specialized paint.

The Respondent submits these vendor notices to corroborate that material delays were due to industry-wide supply chain issues, impacting the availability of certain items crucial to project completion. This evidence supports our defense by demonstrating that delays in material delivery were outside of Zhi Yu Engineering's control and were instead caused by uncontrollable external factors that affected suppliers globally.

The attached vendor communications include official letters, emails, and order status updates from suppliers, each providing specific information about delayed items. These materials include, for example, notices about tiles and waterproofing supplies experiencing significant delays due to supply chain disruptions. Each document highlights the initial expected delivery date, revised timeline, and any communication from the suppliers detailing the causes of the delays. This evidence reflects Zhi Yu Engineering's proactive approach to informing Mr. Chan of these unavoidable delays and our efforts to work around the supply chain issues as efficiently as possible. By providing clear documentation of these external factors, we support our assertion that any material delays were the result of uncontrollable market conditions rather than a lack of project oversight.

E1. Supplier Communications

E1-1. Email from Tile Supplier dated 15 Nov 2024 regarding shipment delay.

E1-2. Waterproofing material backorder notice dated 20 Nov 2024.

E1-3. Specialized paint availability update dated 28 Nov 2024.

E2. Revised Delivery Schedules

E2-1. Updated delivery timeline for tiles (expected arrival: 10 Dec 2024).

E2-2. Waterproofing materials revised delivery date (expected arrival: 18 Dec 2024).

E2-3. Specialized paint revised delivery date (expected arrival: 22 Dec 2024).

E3. Impact Summary

Delays in material supply contributed to schedule adjustments and additional labor costs, as detailed in Exhibit C.

Attachment

< Inbox



Raymond Lee

12th February 2025

To: Zhi Yu Engineering Company >

Update on Waterproofing Material Order #A12345

Dear Zhi Yu Engineering Team,

Due to unprecedented global demand and supply chain bottlenecks, our delivery of the waterproofing material you ordered has been delayed. We initially expected delivery by 5th February but now anticipate arrival by 20th February 2025.

We apologize for the inconvenience and are doing everything we can to expedite the process. Please let us know if there is any further assistance we can provide.

Best regards,
Michael Chan
Sales Manager, GreenShield Waterproofing Supplies



< Inbox



Raymond Lee

1st February 2025

To: Zhi Yu Engineering Company >

Delay Notice - Premium Tile Shipment

Dear Zhi Yu Engineering,

We regret to inform you that due to global shipping disruptions, the shipment of your premium tiles, initially scheduled for delivery on 30th January 2025, has been delayed. The revised delivery date is now 15th February 2025. We understand the importance of timely delivery and are working closely with logistics partners to ensure your order arrives as soon as possible.

Thank you for your understanding.

Sincerely,

Hong Kong Tile Solutions Ltd.

Contact Person: Raymond Lee



< Inbox



Anna Wong

25th February 2025

To: Zhi Yu Engineering Company >

Order Status Update - Custom Fixture Delay

Dear Zhi Yu Engineering,

We are writing to update you on the custom fixtures ordered for your project. Due to an unexpected materials shortage, production has been delayed. We initially estimated completion by 15th February 2025, but the current expected completion date is now 5th March 2025.

We apologize for the delay and are doing our utmost to accelerate production to meet your requirements. We will keep you informed of any further changes.

Sincerely,

Anna Wong

Production Manager, Bespoke Interiors Ltd.



Exhibit D – Weather Reports & Warnings

Date: 21st March 2025

This exhibit provides official weather alerts and site records evidencing severe weather conditions that impacted the project schedule. These records demonstrate that delays were caused by external factors beyond the Respondent's control, including typhoon signals and heavy rain warnings issued by the Hong Kong Observatory (HKO). The Respondent submits this evidence to support the defense that project delays were reasonable and unavoidable under the circumstances.

This document contains weather reports and work suspension logs to demonstrate that certain project delays resulted from adverse weather conditions, requiring necessary work stoppages in compliance with safety regulations. This evidence supports our position that Zhi Yu Engineering prioritized safety and adhered to best practices in the face of severe weather, which contributed to project delays in a responsible manner.

Included in this submission are historical weather records, highlighting specific days when heavy rain or typhoons made construction work unsafe or impractical. Additionally, work suspension logs detail specific dates and times when work was paused, signed off by the site supervisor, and outline the specific type of work affected and the safety precautions observed. These logs illustrate our commitment to upholding high safety standards while balancing the need to complete the project. This documentation is essential to show that the Respondent's delays were not due to negligence but rather a prudent approach to ensure worker safety and project integrity.

D1. Official Weather Alerts

- Copies of HKO warnings for Black Rainstorm and Typhoon Signals affecting Tai Po during November–December 2024.
- Dates and times of each alert relevant to site stoppages.

D2. Site Diary Entries

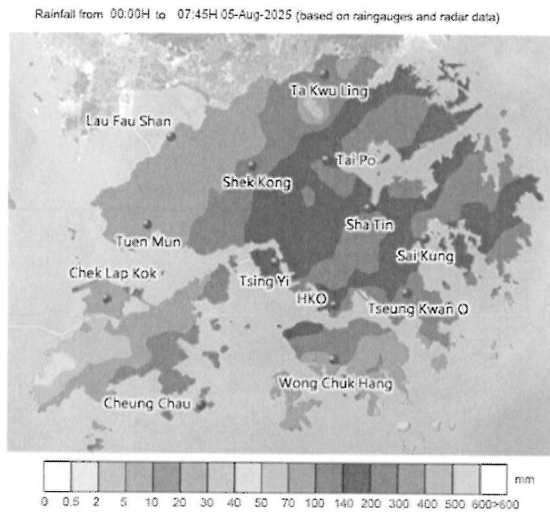
- Daily logs referencing weather-related stoppages and safety measures.
- Notes on manpower and equipment idle due to severe weather.

D3. Photographic Evidence

- Date-stamped photos showing site conditions during heavy rain and typhoon warnings.
- Images of protective measures implemented on-site.

Attachment

Weather reports and signed work suspension logs detailing weather-related project delays are attached.



 **Hong Kong News Updates**

Black Rainstorm Warning Signal

Black Rainstorm Warning Signal
Special Announcement issued by the
Hong Kong Observatory at 9:10 a.m.

The Rainstorm Warning Signal is now
Black. This means that heavy rain has
fallen or is expected to fall generally
over Hong Kong, exceeding 70
millimetres in an hour, and is likely to
continue.



Exhibit F – Photographic Evidence of Completed Work Quality

Date: 21st March 2025

These photographs serve as visual evidence that the completed work meets or exceeds contractual quality standards, countering any claims of substandard materials or workmanship. The Respondent submits these images to demonstrate the high standard of work achieved, affirming our commitment to quality throughout the project.

Detailed Description of Evidence

The attached photographs showcase various aspects of the completed project, including detailed views of the tiling, waterproofing, and other structural elements as outlined in the original contract. Each image includes a brief description of the work shown, with annotations that specify material quality, installation technique, and adherence to industry standards. These images provide a clear representation of the project's final state, which demonstrates that the Respondent maintained quality and met or exceeded the specifications agreed upon in the contract. By documenting each completed stage of the project, we offer evidence that counters any claims of substandard materials or inadequate workmanship.

Attachment

Photographs of the completed work, with annotations showing material quality and alignment with contractual standards, are included.



Exhibit G – Weather Reports & Warnings

Date: 21st March 2025

This submission provides detailed invoices and records documenting additional costs incurred for client-requested modifications. The Respondent submits this evidence to show that the additional costs were agreed upon and directly tied to changes requested by Mr. Chan, supporting our position that these charges were necessary and communicated in full transparency.

Included are itemized invoices detailing specific costs related to Mr. Chan's design changes and additional features, such as extra materials and labor hours needed to accommodate adjustments in layout and finish. Each invoice specifies the nature of the client's request, the associated cost, and notes indicating discussions and agreements between the Respondent and Mr. Chan about the financial impact. These records make it clear that the Respondent incurred extra expenses to meet the Claimant's preferences, which fell outside the original project scope, reinforcing that the costs were justified and communicated as necessary expenses.

Invoices:

Zhi Yu Engineering Company

INVOICE

Items	Price
Final payment	HKD 660,600
Additional Labor for Waterproofing (Due to weather delay)	HKD 333,500
Material Substitution for Waterproofing	HKD 202,000
Additional Cost for Specialized Paint (Unapproved material substitution)	HKD 201,500
Extra Labor for Rework (Due to Material Delay)	HKD 400,000

Total: HKD 1,797,600

Payment method:

Bank Name: Bank of Hong Kong

Account Name: Zhi Yu Engineering Company Ltd.

Account Number: 123-4567890

SWIFT Code: BOHKKHH

Branch: Central Branch, Bank of Hong Kong

Contact for Payment Inquiries:

Name: James Chen, Project Manager

Phone: +852 2345 6789

Email: accounts@zhiyueng.com.hk

Exhibit H – Third-Party Inspection or Quality Assessment Reports

Date: 21st March 2025

This independent quality assessment serves as impartial evidence that all materials and workmanship meet or exceed industry standards. The Respondent submits this report to validate that the project was completed to high standards in alignment with the original contract.

This report includes a comprehensive review from a certified independent inspector, covering material quality, structural integrity, and installation techniques. The report confirms that materials and workmanship align with industry and contractual expectations. By providing third-party verification, this document offers an objective assessment that strengthens the Respondent's position on the quality of work provided, countering claims of substandard materials.

Attachment on next page.

Independent Inspector's Report

Inspector: Global Quality Assessment Services Ltd.

Inspector's Name: Mr. David Wong, Certified Building Inspector

Inspection Date: 15th March 2025

Report Reference: GQAS-0257-ZYE-2025

Summary of Findings:

- Material Quality Assessment
 - Tiling Materials: The tiles used meet the agreed specifications in the contract and adhere to durability and aesthetic standards. Randomized sampling of installed tiles confirmed they possess the required strength and wear resistance.
 - Waterproofing Materials: All waterproofing layers were inspected and met industry benchmarks for moisture resistance, thickness, and application quality. Testing in selected areas showed no seepage, ensuring effective waterproofing.
 - Fixtures and Fittings: All installed fixtures were inspected and confirmed to be in compliance with contractual specifications and quality standards for durability and safety.
- Workmanship Quality and Structural Integrity
 - Foundation and Structural Elements: The foundation was reviewed and found to meet all structural integrity requirements. Load-bearing assessments confirmed that all structural elements adhere to safety standards.
 - Installation Techniques: Installation techniques for tiling, waterproofing, and fixture placement were assessed and found to align with industry best practices. The inspector noted that installation followed precise alignment and leveling protocols, resulting in a high-quality finish.
 - Finishing and Aesthetic Consistency: Finishing work on walls, floors, and ceiling elements was reviewed for consistency, smoothness, and aesthetic appeal. The inspection confirmed that the work is free from noticeable flaws and meets professional standards.
- Compliance with Contractual Specifications

The inspector verified that all materials and techniques were used as specified in the original contract. No deviations from the agreed specifications were observed, and the quality of work aligns with professional construction standards, supporting the Respondent's assertion of compliance with contract terms.

Inspector's Conclusion:

Based on a thorough inspection, this independent assessment confirms that Zhi Yu Engineering Company's materials and workmanship meet industry standards and contractual obligations. All tested areas demonstrate high-quality execution, with no evidence of substandard materials or methods. This report substantiates that the project's quality aligns with the specifications and expectations agreed upon by both parties.